

Court No. - 46

Case :- WRIT - C No. - 17763 of 2020

Petitioner :- Arkan Alam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prashant

Sharma, Pankaj Sharma

Counsel for Respondent :- C.S.C., Pranjal
Mehrotra

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Shri Prashant Sharma, learned counsel for the petitioner, learned Standing Counsel on behalf of the respondent nos.1,2 & 5 and Shri Pawan Kumar Mishra, Advocate holding brief of Shri Pranjal Mehrotra learned counsel appearing for the respondent nos.3 & 4.

The present writ petition has been filed, seeking following relief:

I. To issue a writ, order or direction in the nature of certiorari to quash the impugned demand notice dated 22.6.2019 issued by the respondent no.3 for the amount of Rs.80018/-;

II. To issue a writ, order or direction in the nature of mandamus directing the respondent authorities to permit the petitioner to deposit the entire electric dues of Rs.80018/- in an easy installment;

III. To issue any other suitable order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case;

IV. To award the cost of the petition in favour of the petitioner.

At the very outset learned counsel for the petitioner has submitted that the petitioner is ready to deposit the entire dues in installment.

Learned counsel for the respondents has contended that the petitioner has an alternative remedy of approaching the appropriate Forum namely, the Executive Engineer under Clause 6.5

of U.P. Electricity Supply Code, 2005.

Under such circumstances, the present petition is disposed of finally with liberty to the petitioner to approach respondent no.3 within two weeks from today. The said respondent shall consider the case of the petitioner and shall pass appropriate order in accordance with law within four weeks thereafter.

Order Date :- 4.11.2020

M. Tariq